Phone: Website: www.larrocstorage.com

WASHINGTON SELF STORAGE RENTAL AGREEMENT

OCCUPANT INFORMATION:

Name:

Address:

City:

State: Zip :

Home Phone:

Cell Phone:

Email:

Driver's License:

SPACE, RENTS & FEES:

Space #:

Rent Due Date: of the month

Rent:

Sales Tax:

Administrative Fee:

Late Fee: $10.00

Returned Check Charge: $30.00

Emergency Contact:
Name:
Address: , ,

Email:

Military Status: Please state whether you or your spouse is a member of the armed forces; commissioned corps of the National Oceanic and Atmospheric Administration; or the commissioned corps of the Public Health Service**:**

Tenant.ActiveMilitary

If Yes, Commanding Officer Contact:

Lienholders: Occupant must disclose any lienholders with an interest in property that is or will be stored in the self-service storage space:

Tenant.LienHolderDetails

General Description of Stored Property:

NOTICE OF LIEN: OCCUPANT'S STORED PROPERTY IS SUBJECT TO A STATUTORY LIEN FOR UNPAID RENT AND OTHER CHARGES, AND YOUR STORED PROPERTY MAY BE SOLD OR OTHERWISE DISPOSED OF TO SATISFY THE LIEN IF RENT AND OTHER CHARGES REMAIN UNPAID FOR FOURTEEN (14) CONSECUTIVE DAYS.

RIGHT TO TOW MOTOR VEHICLES OR BOATS: Pursuant to the Washington Law Owner may have motor vehicles, boats or trailers towed from the facility when rent is sixty (60) of more days past due.

Facility.Name d/b/a ("Owner") rents the storage space indicated above to the Occupant on the terms and conditions set forth below:

1. TERM: The term of this agreement shall commence on the date the agreement is executed and shall continue on a month-to-month basis thereafter until terminated. The minimum term is one month.
2. RENT: The monthly rent and applicable sales tax shall be the amount stated above. The rent shall be paid to Owner or Owner's agent at the address designated in this agreement. Payment is due on the Rent Due Date stated above of each calendar month, in advance and without demand. Owner reserves the right to require that the rent and other charges be paid by cash, certified check or money order. If the monthly rent is not paid on

or before the Rent Due Date, Occupant shall be in default. Owner, at Owner's sole discretion, may accept or reject partial rent payments. Acceptance of partial payments of rent by Owner shall not constitute a waiver of Owner's rights and Occupant understands and agrees that acceptance of a partial rent payment shall not delay or stop foreclosure on Occupant's stored property**. Only full payment on Occupant's account will stop a lien sale.**

3. LATE CHARGES AND OTHER FEES: If rent is received five (5) or more days after the Rent Due Date, a late fee shall be charged each month the rent or any part thereof is past due. Occupant agrees to pay Owner the return check charge stated above plus all bank charges for any dishonored check. These fees are considered additional rent. Occupant also agrees to pay the indicated collection and lien sale fees incurred by Owner.

a. Lien Fee: $50.00
b. Lock Cut Fee: $40.00
c. Unreturned or Damaged Key Fob (if applicable): $25.00
d. Cleaning Fee: $100.00

4. ADMINISTRATION FEE: Occupant shall pay the nonrefundable administration fee indicated above upon executing this agreement.

5. SECURITY DEPOSIT: Occupant will pay a security deposit in the amount stated above to secure Occupant's faithful performance of all terms of this agreement. Occupant agrees that Owner need not segregate the deposit from other funds and that no interest will be paid on the deposit. The security deposit shall be returned to Occupant within thirty (30) days after Occupant surrenders the rented space to Owner, less all charges for cleaning, repairing or otherwise preparing the space for rental to others. Owner may withhold funds from the security deposit to compensate Owner for rent or any other charges due and unpaid under this agreement.

6. CROSS-COLLATERALIZATION: When Occupant rents more than one space at this facility, the rent is secured by the property in all the spaces rented. Failure by Occupant to pay rent or other charges on any space shall be considered a default on all spaces rented. Owner may deny Occupant access to all spaces rented if rent or other charges are not paid on any space.

7. DENIAL OF ACCESS: If Occupant has not paid the rent for five (5) days after the Rent Due Date, Owner may deny Occupant access to the storage space. If Occupant is in violation of the facility's Rules and Regulations, Owner may revoke Occupant's gate access code and require Occupant to check-in at the facility office for entry.

8. LOCKS: Unless there is an electronic facility lock, Occupant shall provide, at Occupant's expense, a lock that Occupant deems sufficient to secure the space. If the space is found unlocked Owner may, but is not obligated to, take whatever measures Owner deems reasonable to secure the space, with or without notice to Occupant.

9. USE OF STORAGE SPACE: Owner rents the indicated space to Occupant and no bailment is created under this agreement. Owner exercises neither care, custody nor control over Occupant's stored property. Occupant agrees to use the storage space only for the storage of property wholly owned by Occupant. Occupant shall not store food or any perishable items in the space. **Occupant shall not store collectibles, heirlooms, jewelry, works of art or any property having special or sentimental value to Occupant. Occupant waives any claim for emotional or sentimental attachment to the stored property. OCCUPANT SHALL NOT USE THE SPACE FOR RESIDENTIAL PURPOSES AND PETS MAY NOT BE KEPT IN THE SPACE.** Occupant shall not use the space to conduct a business, workshop or use other than storage without the prior written permission of the Owner. Violation of these prohibitions shall be grounds for immediate termination of this agreement. Occupant understands and agrees to use the space only for the storage of personal property. Occupant may not store any property in the space which contains rodents, roaches, insects, or any other animal or causes an infestation of rodents, roaches, insects, or any other animal in the space and/or at the facility. Should Owner believe that the space is infested with rodents, roaches, insects, or other animal(s), Occupant grants Owner the authority to immediately enter the space to treat the space in any way Owner deems appropriate and remove the property from the facility if reasonable at the discretion of Owner.

10. LIMITATION OF VALUE: Occupant agrees not to store property with a total value in excess of $5,000 without the written permission of the Owner. If such written permission is not obtained, the value of Occupant's property shall be deemed not to exceed $5,000. Nothing herein shall constitute any agreement or admission by Owner that Occupant's stored property has any value, nor shall anything alter the release of Owner's liability set forth below. Occupant shall obtain protection plan for the contents of their unit.

11. HAZARDOUS OR TOXIC MATERIALS PROHIBITED: Occupant is strictly prohibited from storing or using materials in the storage space or at the facility classified as hazardous, illegal or toxic under any law, ordinance or regulation, or from engaging in any activity which produces such materials including, but not limited to, varnish, thinner, gasoline and/or other highly flammable materials. Owner, at Occupant's sole expense, may enter the storage space at any time to remove and dispose of prohibited items.

12. INSURANCE: Occupant, at Occupant's expense, shall maintain a policy of fire, extended coverage endorsement, burglary, vandalism and malicious mischief insurance for the actual cash value of the stored property. Insurance on Occupant's stored property is a material condition of this agreement and is for the benefit of both Occupant and Owner. Failure to carry the required insurance is a breach of this agreement and Occupant assumes all risk of loss to stored property that would be covered by such insurance. Occupant expressly agrees that the insurance company providing such insurance shall not be subrogated to any claim of Occupant against Owner, Owner's agents or employees for loss of or damage to stored property.

13. RELEASE OF OWNER'S LIABILITY FOR PROPERTY DAMAGE: All personal property stored within or upon the storage space by Occupant shall be at Occupant's sole risk. Occupant releases Owner from any liability for loss of or damage to Occupant's personal property in the rented space or at the self storage facility arising from any cause whatsoever including, but not limited to, burglary, mysterious disappearance, fire, water damage, rodents, insects, mold, mildew, Acts of God, the active or passive acts or omissions or negligence of the Owner, Owner's agents or employees.

14. RELEASE OF OWNER'S LIABILITY FOR BODILY INJURY: Owner, Owner's agents and employees shall not be liable to Occupant or Occupant's agents for injury or death as a result of Occupant's use of the storage space or the self storage facility, even if such injury is caused by the active or passive acts or omissions or negligence of the Owner, Owner's agents or employees.

15. INDEMNITY: Occupant agrees to indemnify, hold harmless and defend Owner from all claims and lawsuits (including attorneys' fees and all costs) that are brought by others arising out of Occupant's use of the storage space and common areas. Occupant's indemnity obligation includes allegations that the Owner or Owner's employees or agents acted in a negligent manner.

16. RULES AND REGULATIONS: Owner shall have the right to establish or change the hours of operation for the facility and to promulgate rules and regulations for the operation and good order of the facility. Occupant agrees to follow all rules and regulations now in effect, or that may be put into effect from time to time.

17. OCCUPANT ACCESS: Occupant's access to the premises may be conditioned in any manner deemed reasonably necessary by Owner. Such measures may include, but are not limited to, limiting hours of operation, requiring verification of Occupant's identity and inspecting vehicles that enter the premises.

18. OWNER'S RIGHT TO ENTER: Occupant grants Owner or Owner's agents access to the storage space upon forty-eight (48) hours advanced written notice to Occupant. In the event of an emergency or nuisance, Owner shall have the right to enter the space without notice to Occupant and take such action as may be necessary or appropriate to preserve the space, to comply with applicable law or to enforce Owner's rights.

19. TERMINATION: Twenty (20) days prior written notice given by Owner or Occupant to the other party will terminate the tenancy. Owner does not prorate partial month's rent. Prepaid full month's rent shall be returned to Occupant within thirty (30) days of vacating the space, provided the space is left vacant and broom clean. Owner may dispose of any property left on the premises by Occupant after Occupant has terminated the tenancy. Occupant shall be responsible for paying all costs incurred by Owner in disposing of such property. This agreement may be terminated immediately if Occupant commits a breach of the peace or violation of law.

20. NOTICES FROM OWNER: All notices required by this rental agreement shall be sent by first-class mail postage prepaid to Occupant's last known address or to the electronic mail address provided by Occupant. Notices shall be deemed given when deposited in the United States mail or sent to the electronic mail address provided. **All statutory notices shall be sent as required by law, which may include electronic mail. If Occupant provides an electronic mail address, Occupant consents to the delivery of notices via electronic mail.**

21. NOTICES FROM OCCUPANT: Occupant shall send notices by first-class mail postage prepaid or electronic mail to the Owner's postal or electronic mail address provided in this agreement or written change thereto.

22. CHANGE OF ADDRESS: Occupant warrants that the postal and electronic mailing information as well as Occupant's phone number provided in this agreement is true, accurate and correct. Occupant understands that Owner is relying on Occupant's representations. Occupant is required to keep all mailing and electronic mail addresses current as well as Occupant's phone number. All postal and electronic mail address changes must be in writing and are valid only when acknowledged by the Owner in writing.

23. NO WARRANTIES: No expressed or implied warranties are given by Owner or Owner's agents as to the suitability of the storage space for Occupant's intended use. Owner disclaims and Occupant waives any implied warranties of suitability or fitness for a particular use.

24. CONDITION AND ALTERATIONS: Occupant has been given an opportunity to examine the rented storage space and accepts it as being clean and in good condition. **Space sizes are approximate and for comparison purposes only**. Spaces may be smaller than indicated in advertising or other size indicators. Occupant shall make no alterations or additions to the storage space without the written consent of the Owner.

25. NO SUBLETTING: Occupant shall not assign or sublet the storage space without the written permission of the Owner.

26. CHANGES: All terms and conditions of this agreement are subject to change upon thirty (30) days' prior written notice to Occupant. Upon receipt of a change of terms Occupant may terminate this agreement by giving notice to Owner ten (10) days before the effective date of the change and vacate the space. If the Occupant does not vacate the storage space, the change shall become effective and govern Occupant's rights of occupancy.

27. CLIMATE CONTROLLED SPACES: Climate-controlled spaces are heated or cooled. Climate-controlled spaces do not provide constant internal temperature or humidity control. Owner does not warrant or guarantee temperature or humidity ranges inside the space due to changes in outside temperature or humidity. Owner shall not be liable for loss of or damage to stored property for mechanical breakdown, power outage or any other climate control system's failure.

28. STORAGE OF MOTOR VEHICLES: Motor vehicles, boats or trailers may be parked on the premises only pursuant to a written agreement. Owner may require a copy of the current vehicle, boat, or trailer registration prior to Occupant storing the property. In the event that any motor vehicle, boat or trailer remains stored in the space after the termination of the agreement or upon Occupant's default, **Owner is authorized under state law to have such vehicle, boat or trailer towed from the facility if rent and other charges are not paid when due.**

29. COMMUNICATION: Occupant and Owner are entering into a business relationship. Occupant authorizes and consents to Owner contacting Occupant at Occupant's residence, email box, cell phone, through social media and by automated telephone calls or texts. Such automated calls or messages may be used for conveying important facility information, marketing or collection purposes.

30. MILITARY SERVICE: If Occupant (or spouse) is in the military service Occupant must provide written notice of such to the Owner at the address of the facility. The Owner will rely on this information to determine the applicability of the Servicemembers Civil Relief Act.

31. OCCUPANT'S PERSONAL INFORMATION: Owner does not sell or rent Occupant's personal information. Owner may provide Occupant's personal information to third parties that provide necessary services to the operation of this self storage facility. Occupant consents to Owner providing Occupant's personal information to such third parties. Owner may use such information while Occupant occupies a storage space and for such time thereafter as required by law or prudent for a business renting commercial real property.

32. TIME TO BRING SUIT: Occupant must bring any claim or file any lawsuit against Owner that arises out of this agreement or Occupant's use of the facility for loss of or damage to stored property within twelve (12) months after the date of the acts, omissions, or inactions that gave rise to such claim or suit or twelve (12) months after the termination of this agreement, whichever occurs first.

33. GOVERNING LAW; JURY TRIAL; SEVERABILITY: The laws where the facility is located shall govern this agreement. Owner and Occupant agree to waive their respective rights to trial by jury of any lawsuit for bodily injury or property damage arising out of or connected with the rental of the storage space or use of the facility. If any part or provision of this agreement is determined to be unenforceable by any court, all remaining parts or provisions of this agreement shall remain in effect and be valid and enforceable.

34. ENTIRE AGREEMENT: This agreement is the complete and final agreement between Owner and Occupant concerning Occupant's use of the storage space and the facility. This agreement supersedes all negotiations and prior agreements concerning the storage space and may be modified only in writing. Nor oral agreements shall be of any effect whatsoever.

35. LIEN SALES: Owner may foreclose on or dispose of Occupant's stored property if rent and other charges are not paid when due. Occupant acknowledges that Owner shall determine the method of sale or disposition, which may include an on-line auction service.

36. ELECTRONIC SIGNATURE: Occupant agrees that any reference in this agreement to a writing or written form may be fulfilled through an electronic record, including an electronic signature, which shall have the same legal force, effect, and enforceability as if it was made in a non-electronic form. If not signed with an original signature below and an electronic signature is used, Occupant understands and agrees that Occupant is consenting to be legally bound by the terms and conditions of this agreement.

Do not sign this agreement until you have read it, including the provision on all pages, and fully understand it. This agreement releases the Owner from liability for loss of or damage to your stored property. If you have any questions concerning its legal effect, consult your legal advisor.

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Occupant Signature

Date: